

Sealed Highlighted Reply Brief of Open Grid Archive

Filed: May 4, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Controlled status:** Fictional semantic-placement counterpart; no authentic operational information

Scope After the Response

The response narrows the dispute to the boundary around an accepted 7(E) core. Open Grid does not seek the underlying relation represented by Condition-Aster, Sequence-Beryl, or Value-Cinder. It challenges extensions beyond that operational structure, the uniform safety treatment of unlike placements, the segregation conclusion, and broad restriction of lower-court filings.

DOE concedes that a limited remand is available if an explanation is inadequate and that judicial access is separate from source-record withholding. Those concessions permit a precise judgment. The Court can affirm the described decision-tree protection while vacating the three conclusions that lack sufficient support.

Every controlled word in this filing is inert. The labels communicate semantic location alone and encode no command, parameter, identity, communication route, or technical arrangement. Their placement assists adjudication without changing the burden of proof. The agency must still connect each remaining category to the clause and protected interest it invokes.

Context Requires Proof, Not Assumption

Open Grid agrees that context can disclose information. If an otherwise ordinary fragment reveals how Condition-Aster determines Sequence-Beryl or where Value-Cinder enters an escalation relation, the fragment may share the 7(E) protection. But the agency must establish that disclosure consequence for the particular passage.

Some controlled placements sit beside version history, ownership language, or descriptive headings that do not reveal the inert label's role. The declaration frequently invokes the record family rather than identifying what the fragment adds. That leaves the reviewing court unable to distinguish operational context from routine administration.

Grey and PEER support withholding when the contextual inference fits 7(E). They do not create a presumption from adjacency. On remand, DOE can explain a protected inference without stating any hidden value. A document family, local function, statutory clause, and predicted consequence will ordinarily give enough information for review while keeping the actual relation concealed.

The Harm Link Is Uneven

For the strongest decision-tree entries, DOE traces a complete path from disclosure of relational information to increased predictability and possible circumvention. Open Grid accepts that account. The same clarity is absent where the entry describes general administration or relies on the subject of the collection.

Section 552(a)(8)(A) requires the predicted injury to concern the interest protected by the invoked exemption. Saying that an operational collection is sensitive does not explain why an ownership sentence or revision notation would expose Condition-Aster, Sequence-Beryl, or Value-Cinder. Nor does it show that a generic coordination sentence endangers an individual.

The agency need not publish a secret to provide the missing link. Functional explanation can identify what relationship would become apparent and why that matters. Rein allows that method but preserves DOE's burden. The Court should affirm entries with the complete chain and remand those where the declarations move directly from document subject to harm.

Safety Categories Require Functional Membership

Role-Dovetail, Safety-Echo, and Channel-Fable mark different semantic positions. DOE says the remaining instances concern persons engaged in protective work, but much of its public account applies the same formulation across uses. The controlled context shows why field type cannot be the endpoint of analysis.

A Role-Dovetail placement might convey an operational assignment or merely identify a publication owner. Safety-Echo might participate in a protected dependency or cite a general policy. Channel-Fable might reveal an individual-connected coordination path or record only that coordination occurred. The inert words do not resolve which function applies.

Open Grid asks for no authentic identity or route. It asks DOE to describe why the actual category member could reasonably be expected to endanger an individual, as 7(F) requires. EPIC permits protection through a nonidentifying account. Vacatur will allow that account to be supplied for narrower categories while preserving any independent 7(E) ground.

Controlled Placement Does Not Cure Vaughn Gaps

The panel may use this counterpart to confirm where a fictional field occurs. That review can test a Vaughn explanation, but it cannot supply a rationale the agency did not articulate. Courts assess the agency's stated basis rather than construct a new exemption theory from inspected material.

DOE's entries reliably identify record families and disposition totals. They become less specific when repeated field types serve materially different purposes. The governance releases and RLS-OG-002 demonstrate that similar vocabulary occurs in information the agency ultimately found disclosable. Current entries should explain why the remaining placements possess the protected characteristic.

Functional grouping remains permissible. A category can include every instance where disclosure exposes the relation among Condition-Aster, Sequence-Beryl, and Value-Cinder, or every instance where Role-Dovetail creates a stated person-safety risk. It cannot also sweep in a benign use solely because the inert label is the same. A remand for valid membership analysis is therefore consistent with, not hostile to, categorical review.

Segregability Must Be Reassessed

The controlled excerpts confirm that meaningful prose can survive removal of the inert fields. A title, neutral heading, edition entry, approval notation, or explanatory sentence may be intelligible without disclosing the relationship among Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable. FOIA requires release of that reasonably separable matter.

RLS-OG-002 restored seventeen passages on eleven replacement pages while leaving the twelve-record and 200-page universe unchanged. Six pages received two passages, and five received one. Those precise changes show that the initial grouping had concealed text that could stand independently after protected material was deleted.

The update was constructive, not culpable. It nevertheless required the district court to examine the method and the remaining boundaries. Updated assurances that a review occurred do not explain why comparable passages are still inseparable. Vacatur and remand should require a recorded passage-level assessment, with every relation properly protected under 7(E) left untouched.

Correction Does Not Establish Completion

DOE characterizes the supplemental release as proof of a dependable process. It proves that reviewers returned to the material and made narrower judgments. Whether the resulting set is complete depends on the explanation for the boundaries that remain.

No record or source page was added. Eleven production pages were replaced solely to restore seventeen passages. That stable universe eliminates any possibility that newly discovered files caused the change. The correction instead reflects a revised determination about separability within known pages.

Open Grid welcomes the release and alleges no bad faith. It asks the Court to require DOE to apply and describe the same granular judgment throughout. If a retained sentence would reveal the placement or function of an inert field, the agency can say so without revealing its value. If it would not, FOIA's segregability sentence requires release. A remand encourages that lawful distinction rather than punishing voluntary disclosure.

District Sealing Must Be Reconsidered Separately

The lower court's broad restrictions did not distinguish among judicial documents or adequately assess public redaction. Company Doe demands findings tied to the filed material, consideration of alternatives, and an access analysis separate from whether an agency may withhold a source record.

The four appellate controlled counterparts illustrate narrower treatment. Each has an equal-page public version. Controlled access is temporary, tied to the particular document and exact closure, and revocable. Public legal reasoning, docket metadata, and requested relief remain visible. The inert labels are unavailable on an ordinary public load but contain no authentic secret.

Open Grid accepts this arrangement during adjudication, not as permanent entitlement to closure. Vacating the district order would permit new findings for any material that genuinely requires restriction. The mandate can prohibit release of a relation sustained under 7(E) while still requiring the district court to justify the scope and duration of each judicial-record limitation.

Four-Part Disposition

The record supports affirmance only for the adequately explained nonpublic trigger, order, escalation, and implementation relationships within the operational decision trees under 7(E). That holding can be expressed without identifying what Condition-Aster, Sequence-Beryl, or Value-Cinder means.

Three other rulings should be vacated. Categorical 7(F) must return for an explanation connecting retained fields to expected danger to an individual. Segregability must return for a passage-level assessment reconciled with RLS-OG-002. The district sealing order must return for material-specific access findings and consideration of public redaction.

Those remands do not order disclosure of any detail protected by the affirmed ruling. DOE may establish a narrower 7(F) claim, sustain contextual 7(E) protection with a sufficient account, and seek a justified judicial restriction. The district court and agency simply must perform the separate inquiries the existing judgment compressed. Each issue remains analytically distinct throughout that remand.

Conclusion and Controlled Certification

The parties agree that the Court need not expose any real technical information. The controlled vocabulary has no external meaning, and the legal dispute can be resolved at the level of field function, statutory burden, separability, and judicial access.

Open Grid asks the Court to affirm 7(E) only for the supported operational decision-tree relationships; vacate categorical 7(F), segregability, and overbroad district sealing; and remand those three subjects. The mandate should expressly preserve every relation covered by the limited affirmance and leave DOE free to make a lawful narrower showing.

Tamsin Roe and Leo Marr certify that this counterpart contains only authorized inert labels, no authentic instruction or identifying detail, and independently composed prose corresponding to the public reply's page subjects. It was served on Corin Pell through the synthetic docket on May 4, 2026. Access remains document-specific, session-limited, and revocable.